

INFORMATION NOTICE AND GENERAL TERMS FOR PHOTOGRAPHY SERVICES

COPYRIGHT, USAGE LICENSE AND RELEASE AGREEMENT

This document governs the terms and conditions applicable to photography services provided by:

Cuong Tomba

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By signing this document, the client acknowledges that they have read, understood, and fully accepted the following terms and conditions.

1. OWNERSHIP OF WORKS AND COPYRIGHT

All photographs, videos, digital content, and any material created by Cuong Tomba within the scope of the photography service are protected under applicable copyright laws, including Italian Copyright Law (Law No. 633/1941 and subsequent amendments).

Intellectual property rights and copyright ownership of all images shall remain exclusively with the photographer, unless otherwise agreed in writing between the parties.

The client acquires only a usage license for the delivered images within the limits established in this agreement.

2. IMAGE USAGE LICENSE

Unless otherwise agreed in writing, the client is granted a non-exclusive, non-transferable license limited to the purposes agreed upon between the parties.

Personal Use

For services intended for private/personal use, the client may use the images for:

- personal printing;
- private archiving;
- sharing on social networks;
- non-commercial use.

Commercial and Promotional Use

The photographer is available to grant licenses for commercial, promotional, advertising, or editorial uses of the images, including but not limited to:

- marketing campaigns;
- brand identity and corporate branding;
- advertising;
- e-commerce;
- websites;
- professional social media;
- catalogs;
- posters;
- sponsored content;
- editorial publications.

Such uses must be expressly agreed upon in writing between the parties and may include:

- territorial limitations;
- time limitations;
- restrictions regarding channels of use;
- additional fees or dedicated licensing agreements.

In the absence of a written agreement, any commercial or promotional use of the images shall be considered unauthorized.

3. PROHIBITED MODIFICATIONS AND USES

Unless prior written authorization is obtained from the photographer, the following are prohibited:

- substantially altering the images;
- removing watermarks or credits;
- reselling or sublicensing the material;
- using the images for unlawful, defamatory, or misleading purposes;
- using the images in connection with artificial intelligence systems, training datasets, or NFTs.

Graphic adaptations necessary for agreed commercial purposes (such as cropping, layout adjustments, resizing, or graphic integration) are permitted provided they do not substantially alter the original work.

4. DELIVERY OF MATERIAL

Delivery times depend on workload and the amount of material to be processed.

Indicatively:

- photographs will be delivered within 1 to 14 business days;
- video content will be delivered within 1 to 4 weeks.

Delivery times are estimates only and may vary due to technical, organizational, or force majeure reasons.

Delivery shall be made through an online gallery, cloud link, or other agreed method.

5. SELECTION AND POST-PRODUCTION

The selection of delivered images shall be carried out exclusively by the photographer according to technical, artistic, and quality criteria.

RAW files and unselected files will not be delivered unless otherwise agreed in writing.

The editing and post-production style falls within the photographer's artistic discretion, and the client acknowledges familiarity with and acceptance of the photographer's portfolio and artistic style.

6. FEES AND PAYMENT TERMS

Unless otherwise agreed in writing:

- a deposit equal to 50% of the agreed fee is required at the time of booking;
- the remaining balance must be paid before final delivery of the material.

In the event of non-payment of the balance, the photographer reserves the right to:

- suspend delivery of the material;
- withhold photographs until full payment is received;
- pursue legal action for debt recovery.

The deposit is non-refundable in the event of cancellation by the client within 7 days prior to the scheduled service date, except in documented cases of force majeure.

7. LIABILITY

The photographer agrees to perform the service with the highest level of professionalism and care.

However, the photographer shall not be held liable for:

- events beyond their reasonable control;
- unforeseen technical malfunctions;
- delays caused by force majeure;
- loss of material caused by exceptional events not attributable to willful misconduct or gross negligence.

In any event, the photographer's liability shall not exceed the amount actually paid by the client for the service.

8. USE OF IMAGES BY THE PHOTOGRAPHER

Unless expressly denied in writing by the client prior to the service, the photographer is authorized to use the images created for:

- portfolio purposes;
- social media publication;
- website publication;
- exhibitions;
- professional self-promotion.

The client may deny such authorization by checking the following box:

☐ I DO NOT authorize the use of the images for the photographer's promotional purposes.

9. PRIVACY

Personal data collected shall be processed in accordance with EU Regulation 2016/679 (GDPR) exclusively for administrative, organizational, and contractual purposes related to the photography service.

ACCEPTANCE

I, the undersigned _____, declare that I have read, understood, and fully accepted the terms and conditions set forth above.

Place _____

Date ____ / ____ / ____

Firma del cliente

Firma del fotografo
